

User Agreement Policy for GrandisTech Consultancy

This User Agreement Policy ("Agreement") outlines the terms and conditions under which GrandisTech Consultancy ("Company," "we," "us," or "our"), an IT consultancy firm specializing in technology advisory, software development, system integration, and related services, provides services to its clients ("User," "you," or "your"). By engaging our services, accessing our website, or using any of our offerings, you agree to be bound by this Agreement. If you do not agree with any part of this Agreement, you must not proceed with our services.

This Agreement is effective as of the date you first engage our services or accept these terms ("Effective Date"). We reserve the right to update this Agreement at any time, with changes posted on our website. Your continued use of our services after any changes constitutes acceptance of the updated terms.

1. Services Provided

GrandisTech Consultancy offers IT consulting services, including but not limited to:

- Technology strategy and advisory.
- Custom software development and implementation.
- IT infrastructure assessment and optimization.
- Cybersecurity consulting.
- Cloud migration and management.
- Data analytics and AI solutions.
- **AI tools consultancy services**, including guidance on the selection, implementation, and optimization of artificial intelligence tools and platforms.

Services are provided on a project-specific basis as detailed in a separate Statement of Work (SOW) or service agreement. We make no guarantees regarding outcomes beyond what is explicitly stated in the SOW.

2. User Obligations

- You agree to provide accurate, complete, and timely information required for the delivery of services.
- You must comply with all applicable laws, regulations, and third-party terms when using our services.
- You are responsible for maintaining the confidentiality of any account credentials or access provided by us.
- You agree not to misuse our services for illegal, harmful, or unauthorized purposes, including but not limited to transmitting viruses, spam, or infringing on intellectual property rights.

3. Payment Terms

- Fees for services will be outlined in the SOW or invoice. Payments are due within the specified timeframe, typically net 30 days from invoice date.
- All payments must be made in the currency specified and via approved methods (e.g., bank transfer, credit card).
- Late payments may incur interest at 1.5% per month or the maximum allowed by law.
- We reserve the right to suspend services for non-payment.

Important Note on Deposits and Third-Party Platforms: At no time will GrandisTech Consultancy request or require you to make deposits or transfers to any third-party platforms, such as trading platforms, investment sites, or unrelated financial services. The Company is not responsible for any losses, damages, or liabilities incurred by users who request or make deposits to third-party platforms like trading platforms, even if such actions are taken based on misleading communications. You are solely responsible for verifying the legitimacy of any payment instructions and should contact us directly through official channels for confirmation.

4. Intellectual Property

- All intellectual property created by us during the provision of services (e.g., software code, reports, designs) remains our property unless otherwise specified in the SOW.
- Upon full payment, we grant you a non-exclusive, non-transferable license to use deliverables for your internal business purposes.
- You retain ownership of any pre-existing materials you provide to us.

5. Confidentiality

- Both parties agree to treat confidential information disclosed during the engagement as proprietary and not to disclose it to third parties without prior written consent.
- Confidential information includes business strategies, technical data, and client lists.
- This obligation survives termination of the Agreement for a period of five (5) years.

6. Limitation of Liability

- To the fullest extent permitted by law, GrandisTech Consultancy shall not be liable for any indirect, incidental, special, consequential, or punitive damages arising from or related to our services, including loss of profits, data, or business opportunities.
- **AI Tools Disclaimer:** GrandisTech Consultancy is not responsible for any losses, damages, or liabilities incurred by the use of AI tools recommended, implemented, or consulted on as part of our AI tools consultancy services. You acknowledge that the use of such AI tools carries inherent risks, and you assume full responsibility for any outcomes resulting from their use.
- Our total liability under this Agreement shall not exceed the fees paid by you for the specific services giving rise to the claim.

- We are not responsible for any third-party products, services, or platforms integrated with our offerings.
- As stated in Section 3, we disclaim all responsibility for losses from unauthorized or user-initiated deposits to third-party platforms.

7. Warranties and Disclaimers

- We warrant that services will be performed in a professional manner consistent with industry standards.
- Except as expressly provided, all services are offered "as is" without warranties of any kind, including merchantability or fitness for a particular purpose.
- We do not warrant that services will be uninterrupted, error-free, or meet all your requirements.

8. Termination

- Either party may terminate this Agreement for material breach with 30 days' written notice, provided the breach is not cured within that period.
- Upon termination, you must pay all outstanding fees, and we will deliver any completed work.
- Sections pertaining to payment, intellectual property, confidentiality, liability, and governing law survive termination.

9. Indemnification

You agree to indemnify and hold harmless GrandisTech Consultancy, its officers, directors, employees, and agents from any claims, losses, or damages arising from your misuse of our services, violation of this Agreement, or infringement of third-party rights.

10. Governing Law and Dispute Resolution

This Agreement shall be governed by the laws of Kenya without regard to conflict of laws principles. Any disputes arising under this Agreement shall be resolved through binding arbitration in Nairobi under the rules of Nairobi Centre for International Arbitration (NCIA) or in a court of competent jurisdiction if arbitration is not enforceable.

11. Miscellaneous

- This Agreement constitutes the entire understanding between the parties and supersedes all prior agreements.
- No waiver of any term shall be deemed a further or continuing waiver.
- If any provision is held invalid, the remainder shall continue in full effect.
- Force majeure events (e.g., natural disasters, wars) excuse performance delays.

For questions or concerns regarding this Agreement, contact us at grandistechconsultancy@outlook.com

By signing or electronically accepting this Agreement, or by using our services, or by making payments through our payment links, you acknowledge that you have read, understood, and agree to these terms.

GrandisTech Consultancy

20/07/2025